

OFFICE OF THE SECRETARY

PO Box 942883
Sacramento, CA 94283-0001



May 9, 2022

The Honorable W. Charles Morgan
Judge of the Superior Court
County of Riverside
4100 Main Street
Riverside, CA 92501

Re: Leonard Rudolph Kemp Jr.
CDCR No: AB6881
Case No: RIF139801
Date of Sentence: November 20, 2009

Dear Honorable W. Charles Morgan:

The purpose of this letter is to provide the court with the authority to resentence inmate Leonard Kemp, AB6881, pursuant to Penal Code (PC) Section 1170.03 Subdivision (a)(1), based upon his exceptional conduct while incarcerated. PC Section 1170.03, Subdivision (a)(1) provides that upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation (CDCR), the court consider and possibly recall a previously ordered sentence, provided the new sentence is no greater than the initial sentence.

As the Secretary of CDCR, I take my obligation to public safety very seriously and choose only to make exceptional conduct referrals when an inmate's behavior, while incarcerated, demonstrates a sustained compliance with departmental rules and regulations, as well as prolonged participation in rehabilitative programming. These inmates have not only exhibited exceptional conduct through their ability to obey rules and regulations, but many have also demonstrated a commitment to their rehabilitation through voluntary participation in various self-help programs, vocational and educational programs, and have displayed a dedicated participation in programs such as Prison Industry Authority, Division of Rehabilitative Programs, and the Integrated Substance Use Disorder Treatment program, to name a few.

Only the Warden of the institution where the inmate is incarcerated can make a recommendation to the Secretary for consideration for potential resentencing referral. Once a recommendation is received, the inmate's case factors are compiled and then thoroughly reviewed by the Director of Adult Institutions. Only a select few cases are approved by the Secretary and referred to the court.

The Honorable W. Charles Morgan
Page 2

Inmate Kemp has received seven Rules Violation Reports since being received to the CDCR on December 1, 2009. Inmate Kemp has remained disciplinary free since April of 2015. Inmate Kemp is currently assigned as a California Prison Industry Authority Furniture Assembler. Inmate Kemp also participates in Avatar-Relapse Prevention and Alternatives to Family Violence, and Phoenix Alliance. Inmate Kemp has received numerous certificates and laudatory chronos from group sponsors acknowledging his commitment and dedication to these self-awareness and improvement groups. Kemp has also completed 15 semester units during his participation in voluntary college through Hartnell Community College.

Having reviewed the enclosed documentation it appears that inmate Kemp's sentence warrants the attention of the court. Pursuant to PC Section 1170.03, Subdivision (a)(1), as the Secretary, I recommend the inmate's sentence be recalled and that he be resentenced.

Sincerely,

A handwritten signature in blue ink, appearing to read "K. Allison", is written over a light blue horizontal line.

KATHLEEN ALLISON
Secretary

Enclosures:
Abstract of Judgment
Minute Order
Court Information-Charging Documents
Cumulative Case Summary

cc: Honorable John M. Monterosso, Presiding Judge
Riverside County District Attorney's Office
Riverside County Public Defender's Office